

TENTATIVE RULINGS FOR DEPT. S36 [DATE]
BEFORE THE HONORABLE JOSEPH WIDMAN

PLEASE NOTE: There may be multiple tentative rulings so view the entire document.

ATTENTION: Commencing December 10, 2022, the Court will no longer regularly provide an official Court Reporter to transcribe proceedings in this Department. Parties who wish to have an official record of the proceedings in addition to a minute order must retain a private Certified Shorthand Reporter for the hearing and must submit a “Stipulation and Order For Appointment of Official Reporter Pro Tempore” to the court in the form found on the Court’s website. If counsel are appearing for the hearing remotely, the Stipulation can be emailed to the Judicial Assistant for Department S-36 at kkosmatka@sb-court.org. The Court may sign the Order appointing the Certified Shorthand Reporter as the official Court Reporter Pro Tempore. Parties who do not retain a Certified Shorthand Reporter to be designated as an official Court Reporter Pro Tempore are deemed to have waived an official Court Reporter for the proceeding.

REFER TO THE GENERAL ORDERS AND FORMS POSTED ON THE COURT’S WEBSITE.

This Court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings are posted on the court’s website after 3:00 p.m. the day before the hearing at [Tentative Rulings | Superior Court of California | County of San Bernardino](#)

You may appear by remote appearance at the hearing. (<https://www.zoomgov.com/my/dept.s36>)

You must appear at the hearing, unless ordered otherwise, prepared to address the issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF RULING

SUPERIOR COURT OF THE STATE OF CALIFORNIA
FOR THE COUNTY OF SAN BERNARDINO

STEVE LA BELLA and IZELLA LA BELLA,

Plaintiffs,

v.

D & M GENERAL CONTRACTING, et al.,

Defendants.

Case No.: CIVSB2505386

**[TENTATIVE] ORDER
GRANTING MOTION TO SET
ASIDE ENTRY OF DEFAULT
AGAINST DEFENDANT MELISSA
MONTELLANO**

I. INTRODUCTION

On February 25, 2025, Plaintiffs Steve La Bella and Izella La Bella filed a Complaint against Defendants D & M Contracting; D&M General Contracting and Handyman Services; D&M General Construction; Dominic Montellano (Dominic); and Melissa Montellano (Melissa). Plaintiffs allege the following causes of action: (1) restitution for unlicensed contracting; (2) violation of Business & Professions Code § 7159 – failure to provide a written home improvement contract; (3) breach of contract; (4) fraud; and (5) violation of Business and Professions Code § 17200 – Unfair Business Practices.

The Complaint arises from improvements to the front and back yard of Plaintiffs' residence that they expected to be completed by July 4, 2023. After D&M and Dominic sent a "Bid Proposal" related to the work Plaintiffs requested, Plaintiffs agreed to hire D&M to perform

the work and D&M sent an invoice for \$70,000. Plaintiffs allege D&M violated Business and Professions Code section 7159 by failing to provide them with a formal written contract for the project. It also violated section 7159 by demanding a \$13,000 deposit. From April to June 2023, D&M sent workers to the property, but in June 2023, D&M stopped making progress on the project. During this time, D&M made frequent requests for “progress payments” from Plaintiffs, which they paid. D&M failed to obtain necessary permits for the project. As of December 2024, D&M failed to complete the project, and Plaintiff Steve sent an email terminating all services. Plaintiffs also allege that neither Defendant Dominic nor D&M had a valid contractor’s license and seek a refund of the \$83,877 they paid. (Compl. ¶¶ 15-32.)

On July 22, 2025, Plaintiffs obtained an order for service by publication that included Defendant Melissa. On October 8, 2025, Defendant Melissa’s default was entered.

Now before the Court is Defendant Melissa’s motion to set aside the default under Code of Civil Procedure sections 473.5, and the discretionary provision of section 473, subdivision (b). Plaintiffs oppose. To date, Defendant Melissa has not replied.¹ After issuing a tentative ruling and holding a hearing on the motion, the Court now issues its final ruling.²

II. WHY THE COURT IS GRANTING THE MOTION

Although Defendant Melissa’s motion is based upon Code of Civil Procedure sections 473.5 and 473(b), based upon its review of case records, the Court has identified separate, independent grounds to grant this motion.

Under Code of Civil Procedure section 415.50, Plaintiff has not demonstrated that service by publication was properly effected. Section 415.50, subdivision (b), requires that an

¹ According to Defendant Melissa, Dominic Montellano died on December 9, 2025. (Melissa Montellano Decl. ¶ 6.)

² The Court finds that the moving party has complied with its meet-and-confer obligation.

order for service by publication “shall direct that a copy of the summons, the complaint, and the order for publication be forthwith mailed to the party if his or her address is ascertained before expiration of the time prescribed for publication of the summons.”

While the order for service by publication did not include this specific requirement,³ Plaintiffs were authorized to serve by publication pursuant to section 415.50, which includes the mailing requirement. Nothing in the record demonstrates that Plaintiffs mailed the summons, complaint, and order for publication to Defendant Melissa. “[S]ervice by publication is ‘a last resort’ . . . [;] section 415.50 is strictly construed.” (*Calvert v. Al Binali* (2018) 29 Cal.App.5th 954, 963.)

Here, Plaintiffs admit that before publication, they knew Defendant Melissa’s address but do not demonstrate that they mailed the summons, complaint, and order for publication to her as part of effecting service by mail. Entry of the default should be found void where service by publication is not demonstrated to have been properly effectuated. Without proper service of the summons and complaint, the court lacks personal jurisdiction over the defendant.

“[A] court has inherent power, apart from statute, to correct its records by vacating a judgment which is void on its face, for such a judgment is a nullity and may be ignored. [Citations.]” (*Olivera v. Grace* (1942) 19 Cal.2d 570, 574.) “[A]lthough the court does not comb the record for errors not pointed out by [the defendant], it ‘is at liberty to consider, and even to decide, a case upon any points that its proper disposition may seem to require whether taken by counsel or not’ [Citation.]” (*Stevenson v. Turner* (1979) 94 Cal.App.3d 315, 318-19.) “[A] default that is void on the face of the record when entered is subject to challenge at any time

³ The form of this proposed order was proposed by Plaintiffs, on May 20, 2025.

irrespective of lack of diligence in seeking to set it aside....” (*Plotitsa v. Superior Court* (1983) 140 Cal.App.3d 755, 761.)

There is another reason that supports finding that Plaintiffs did not properly effectuate service by publication, making service and the entry of the default void.

In their motion seeking service by publication, Plaintiffs did not state whether they had attempted service by mail with notice and acknowledgment pursuant to Code of Civil Procedure section 415.30. “If a defendant’s address is ascertainable, a method of service superior to publication must be employed, because constitutional principles of due process of law, as well as the authorizing statute, require that service by publication be utilized only as a last resort.” (*Watts v. Crawford* (1995) 10 Cal.4th 743, 749, fn.5.) Here, it is not demonstrated that Plaintiffs attempted service by mail with notice and acknowledgment pursuant to section 415.30. (See *Transamerica Title Ins. Co. v. Hendrix* (1995) 34 Cal.App.4th 740, 746 (*Transamerica*).) In *Transamerica*, the Court found the application for service by publication was defective where the plaintiff failed to attempt service by mail pursuant to section 415.30 before filing its application for order for publication of summons. Therefore, the section 415.50 motion for service by publication was found defective as a matter of law. The Court found that where the defendant’s address was known, the plaintiff’s failure to attempt service pursuant to section 415.30 invalidated the plaintiff’s application for service by publication. (*Transamerica, supra*, 34 Cal.App.4th at p. 746.) The court stated that based on the plaintiffs’ “failure to comply with Code of Civil Procedure section 415.30, the section 415.50 motion was incorrectly granted as a matter of law and therefore service by publication was invalid....” The appellate court concluded that in such circumstances, “[t]he trial court had a legal duty, not merely discretionary power, to vacate the default it had erroneously entered.” (*Transamerica, supra*, at p. 746.)

III. CONCLUSION

Defendant Melissa's motion to set aside entry of default is GRANTED. The entry of default was void, because service by publication was not properly effectuated due to:

(1) Plaintiffs' motion for publication failing to address whether Plaintiffs attempted to comply with section 415.30 [service by mail with a notice of acknowledgment] before seeking service by publication, and (2) Plaintiffs, as part of service by publication, failing to mail copies of the summons, complaint, and order of publication to Defendant Melissa where Plaintiffs admit her address was known.

IT IS SO ORDERED.

Dated: _____

[TENTATIVE – NOT FINAL]

Hon. Joseph B. Widman
Judge of the Superior Court

SUPERIOR COURT OF THE STATE OF CALIFORNIA
FOR THE COUNTY OF SAN BERNARDINO

MARVIN SIMMONS,

Plaintiff,

v.

SEMISI SIOKATAME TUPOU, et al.,

Defendants.

Case No.: CIVSB2308626

**[TENTATIVE] ORDER DENYING
MOTION TO COMPEL
INDEPENDENT MEDICAL EXAM
OF PLAINTIFF, FILED BY
DEFENDANT TUPOU**

IV. INTRODUCTION

On April 12, 2023, Plaintiff Marvin Simmons filed a Complaint against Defendants Semisi Siokatame Tupou and Singh Transport, Inc. Plaintiff alleges Defendants' freightliner failed to stop and collided with Plaintiff's vehicle while the parties were traveling on Interstate 10. Plaintiff alleges negligence. Trial is set for September 22, 2026.

Now before the Court is Defendant Tupou's motion to compel the independent medical examination of Plaintiff more than 75 miles from Plaintiff's residence. After issuing a tentative ruling and holding a hearing on the motion, the Court now issues its final ruling.⁴

V. APPLICABLE LAW

A defendant may seek a physical medical examination with leave of court. (Code Civ. Proc., § 2032.310.) The notice of motion must set forth the time, place, identity, and specialty of the examiner, and the "manner, conditions, scope, and nature of the examination." (Code Civ. Proc., § 2032.310, subd. (b).) Code of Civil Procedure section 2032.320, subdivision (a), provides: "The court shall grant a motion for a physical or mental examination under Section 2032.310 only for good cause shown." "The concept of good cause serves as a barrier to excessive and unwarranted intrusions. [Citations.] [¶] Good cause is established by facts that "appear in the record as a demonstrable reality." [Citation.] Mere speculation, standing alone, will not suffice. [Citation.]" (*Sporich v. Superior Court* (2000) 77 Cal.App.4th 422, 428, superseded by statute on other grounds as stated in *Albertson v. Superior Court* (2001) 25 Cal.4th 796, 804-08.)

With respect to distance, section 2032.320, subdivision (e), provides:

(e) If the place of the examination is more than 75 miles from the residence of the person to be examined, an order to submit to it shall be entered only if both of the following conditions are satisfied:

- (1) The court determines that there is good cause for the travel involved.
- (2) The order is conditioned on the advancement by the moving party of the reasonable expenses and costs to the examinee for travel to the place of examination.

⁴ The Court finds that the moving party has complied with its meet-and-confer obligation.

VI. EXPLANATION OF THE COURT'S RULING

A. Parties' Positions

Defendant contends that Plaintiff alleges he suffered substantial orthopedic and spinal injuries, bilateral knee complaints, radiating pain, numbness, and tingling, and requires ongoing pain management treatment, including injections, medical branch blocks, and ablations. Plaintiff claims to suffer from ongoing symptoms and to need future medical care. (Lim Decl. ¶ 3 and Exh. B.)

At the time of the accident, Plaintiff resided in Ontario, California. At the time of the suit and currently, Plaintiff lives in Ellicott City, Maryland, relocating in December 2022. (Lim Decl. ¶ 4.)

Defendant Tupou asserts that to evaluate Plaintiff's claimed injuries, Defendant Tupou retained Jeffrey C. Wang, M.D., to conduct an IME. Wang is a California-based board-certified orthopedic surgeon, specializing in spine surgery. (Lim Decl. ¶ 6.)

On February 23, 2026, Defendant Tupou served an amended demand for IME for Plaintiff, scheduling the IME with Dr. Wang for April 3, 2026, in Arcadia, California, describing the procedures to occur. The examination's location is within 75 miles of the San Bernardino County courthouse where trial is scheduled. (Lim Decl. ¶¶ 7-8 and Exh. D.) On February 26, 2026, Plaintiff objected, asserting the examination should occur in Maryland and objecting to the location of the examination. (Lim Decl. ¶¶ 9 and Exh. E.)

As part of Defendant's meet and confer, he offered to advance Plaintiff's reasonable travel, lodging, and meal expenses for the IME. (Lim Decl. ¶ 10 and Exh. F.) Defendant thereafter re-noticed the IME with Dr. Wang for July 14, 2026. (Lim Decl. Exh. G.)

In opposition, Plaintiff does not dispute that Defendant Tupou is entitled to conduct an IME. He contends that Defendant has not shown good cause for compelling an examination

across the country and does not explain why Defendant cannot retain an orthopedic doctor closer to Plaintiff's Maryland residence. He contends that despite knowing that Plaintiff lives in Maryland, Defendant retained Dr. Wang, located in California, to conduct the physical exam. Plaintiff contends that on November 10, 2025, defense counsel first noticed the physical exam with Dr. Wang and at that time Plaintiff objected. Three months later, defense counsel served an amended notice for an IME with Dr. Wang, and Plaintiff again objected to the location. (Curry Decl. ¶¶ 7-8.)

Plaintiff points out that with Defendant's second notice, the exam is noticed to take place at 1450 San Pablo Street in Los Angeles, even though the motion argues the exam is scheduled to occur in Arcadia. Nonetheless, Plaintiff has objected because the location is more than 75 miles from Plaintiff's current residence. (Curry Decl. ¶ 9.)

Plaintiff contends that he is 68 years old and has ongoing injuries from the accident that cause pain and stiffness in his lower back. He asserts that it would be burdensome, unreasonable, and substantially inconvenient to request he travel on a flight across the country for an examination that can be conducted within 75 miles of his residence or through tele-medicine. He asserts that this examination will require him to take a six-hour direct flight to LAX and then fly home, and will take at least 3 days. (Curry Decl. ¶¶ 10-11.)

In reply, Defendant Tupou argues that Plaintiff does not contest the taking of an IME, it is just the location at issue. He argues that Plaintiff does not offer any evidence that a telemedicine examination is sufficient and asserts that under section 2032.220, he is entitled to take Plaintiff's in-person medical exam. He also argues that neither Plaintiff nor any medical professional has submitted evidence in support of Plaintiff's claim that his age and ongoing injuries make compelling him to return to California "burdensome" and "unreasonable." He also

contends that Plaintiff resided in Ontario at the time of the incident and availed himself of this Court's jurisdiction by filing the action in San Bernardino County. Finally, he argues that if trial proceeds, Plaintiff will be required to travel to California. Defendant again raises the issue that he has agreed to cover all reasonable travel expenses, arguing the only burden on Plaintiff is his travel to/from California.

Defendant Tupou claims it is inequitable and unduly burdensome to require Defendant to retain an expert in Maryland and incur the costs for the expert to attend trial in California.

B. Why the Motion Should Be Denied

Defendant's reply does not address the issue that in the second amended notice, the location of the examination with Dr. Wang is at an address in Los Angeles, as opposed to Arcadia.

Nonetheless, the main issue of contention is whether good cause is demonstrated to require Plaintiff to travel to California for the examination given Plaintiff lives in Maryland and has lived there since before the action was filed. Defendant Tupou first sought to conduct Plaintiff's IME with a notice served in November 2025, to which Plaintiff objected in December 2025. (Lim Decl. ¶ 7.) It was not until May 29, 2026, with a trial date of September 22, 2026, that Defendant filed his motion to compel Plaintiff to appear in California for an IME with Dr. Wang.

In support of compelling Plaintiff's travel, Defendant cites cases from Florida and the federal district court in the Southern District of New York. In opposition, Plaintiff relies on *Hansen v. Workers' Compensation Appeal Board* (1989) 211 Cal.App.3d 717, 719-20, in which at issue was the Board's order requiring an employee to appear for an examination more than 185 miles from the employee's residence, after concluding Labor Code sections 4050 and 4051 applied to the location of the examination, not Code of Civil Procedure section 2032 [now

section 2032.320]. The Board found the employee had not shown he was physically unable to attend the examination or that doing so was a substantial inconvenience. (*Id.* at p. 721.) While the Court discussed it need not decide the applicability of section 2032, it noted it is indicative of legislative intent to limit the distance for medical examination in civil cases to 75 miles, noting the distance requirement is a similar relevant factor in Labor Code section 4051. (*Ibid.*) The Court concluded that ordering the employee with a claimed industrial heart condition to appear for a medical examination 185 miles from his home when there were physicians available within 75 miles of the employee's residence was an abuse of discretion. It concluded that under the facts, the 185-mile trip was unwarranted and unreasonable. (*Id.* at pp. 721-22.)

Again, here there is no dispute that Defendant Tupou is entitled to at least one physical examination. Defendant is correct that the accident occurred in San Bernardino County and the trial will occur here too. Defendant also correctly points out that Plaintiff has not presented any evidence that traveling across the country would be burdensome, unreasonable, or substantially inconvenient to him. But in these circumstances, it is the party seeking an IME — here, Defendant — who bears the burden of establishing good cause that the examination cannot be held within 75 miles of Plaintiff's residence. Code of Civil Procedure section 2032.320 enforces a strict 75-mile distance limitation from an examinee's residence, providing no special exceptions for plaintiffs who reside out of state

To succeed on this motion, Defendant must establish good cause and explain why he cannot find a suitable expert located within 75 miles of Plaintiff's Maryland residence who is able to appear for trial here in California, or an expert, including Dr. Wang, willing to travel to Maryland to conduct the examination.

VII. CONCLUSION

Given Defendant has not carried its burden of proving good cause to require Plaintiff to travel to California for Dr. Wang to conduct an IME, the Court DENIES the motion.

In the interest of fairness, the Court ORDERS that Plaintiff shall not meet in person with any expert in this litigation, including his own, if it involves travel of more than 75 miles from his residence, unless Plaintiff is willing to undergo the IME at issue in this motion.

Finally, the Court will entertain a defense motion to permit a limited IME within 75 miles of the courthouse immediately prior to trial, when Plaintiff must travel to San Bernardino County anyway.

IT IS SO ORDERED.

Dated: _____

[TENTATIVE – NOT FINAL]

Hon. Joseph B. Widman
Judge of the Superior Court

SUPERIOR COURT OF THE STATE OF CALIFORNIA
FOR THE COUNTY OF SAN BERNARDINO

ELIZABETH RODRIGUEZ,
Plaintiff,

v.

RONALD ABARO DDS, INC. dba CHINO
FAMILY DENTAL, et al.,
Defendants.

Case No.: CIVSB2226979

**[TENTATIVE] ORDER
GRANTING MOTION FOR
SUMMARY ADJUDICATION
FILED BY DEFENDANT MARINA
HURN**

VIII. INTRODUCTION

This is a wage and hour and employment case. On November 28, 2022, Plaintiff Elizabeth Rodriguez filed her Complaint against Defendants Ronald Abaro DDS, Inc. dba Chino Family Dental (CFD), Ronald Abaro, Marina Hurn, Timothy Vandecar, Carlos Bermudez, and Ianina Cheung. The operative First Amended Complaint pleads 22 causes of action:

- (1) Denied rest breaks against CFD, Abaro, Hurn, and Vandecar;
- (2) Denied meals against CFD, Abaro, Hurn, and Vandecar;
- (3) Waiting time penalties against CFD, Abaro, Hurn, and Vandecar;
- (4) Failure to reimburse against CFD, Abaro, Hurn, and Vandecar;

- (5) Inaccurate wage statements against CFD, Abaro, Hurn, and Vandecar;
- (6) Sex/gender discrimination against CFD;
- (7) Disability discrimination against CFD;
- (8) Perceived disability discrimination against CFD;
- (9) Disability-based associational discrimination against CFD;
- (10) Sexual harassment against CFD and Cheung;
- (11) Harassment against CFD, Bermudez, and Cheung;
- (12) Retaliation against CFD;
- (13) Failure to prevent against CFD;
- (14) Failure to accommodate against CFD;
- (15) Failure to interact against CFD;
- (16) Retaliation (Lab. Code, §§ 98.6, 246.5, & 1102.5) against CFD;
- (17) Negligent hiring, retention, and supervision against CFD;
- (18) Battery against Cheung;
- (19) Sexual battery against Cheung;
- (20) Assault against Cheung;
- (21) Violation of the Unfair Competition Law (UCL) against CFD; and
- (22) Wrongful/constructive termination against CFD.

Defendants answered. On June 23, 2026, the Court granted Vandecar's Motion for Summary Adjudication on all causes of action pled against him.

A. The FAC's Allegations

The FAC alleges Rodriguez was employed by CFD as a registered dental assistant (¶ 27). She suffers from depression and anxiety (¶ 28). In the course of her employment, supervisor Bermudez would stand over and stare at her, talk down and overexplain things to her, and

address her unprofessionally before patients. Bermudez, a married man, and coworker Cheung would kiss and engage in an over-friendly manner with each other that made Plaintiff uncomfortable. Cheung touched Rodriguez inappropriately, causing a panic attack on one occasion that forced her to leave work early and take several days of medical leave. Also, manager Erika Laza called Rodriguez hard-headed in front of patients (§§ 29-33, 36, 42). Rodriguez was once assigned to work with a dentist who potentially had Covid but was not required to take leave or test before returning. Yet, when Rodriguez took off sick unrelated to any Covid symptoms, she was required to obtain a negative Covid test before returning (§§ 34-35, 39). Further, Rodriguez requested a day off on two different occasions to assist family and was denied those time-off requests (§§ 38, 40). Plaintiff was also subjected to false and improper write-ups and warnings. Finally, due to the stress at work, she quit on May 23, 2021 (§§ 41, 43, 45).

The FAC also alleges that Rodriguez was not given uninterrupted meals and rest breaks, which resulted in the premium wage not being paid or recorded in her wage statements. She was not reimbursed for the Covid test she was required to take, and for vehicle expense when she traveled to different locations (§§ 39, 46-49, 62, 68, 81-82, 90). When she was constructively terminated, Rodriguez did not receive her final paycheck in a timely manner (§ 75).

Finally, the FAC alleges Defendants Abaro, Hurn, and Vandecar were owners, directors, officers, or managing agents of CFD and personally involved in the wage matters. Alternatively, they were the alter egos of CFD (§§ 13-14, 17, 20, 23).

B. Pending Motion

Defendant Hurn moves for summary adjudication of the 1st through 5th causes of action. Plaintiff Rodriguez opposes. Defendant Hurn replies. After issuing a tentative ruling and holding a hearing on the motion, the Court now issues its final ruling.⁵

IX. EVIDENTIARY OBJECTIONS

With her Opposition, Plaintiff Rodriguez filed 7 evidentiary objections to Hurn's Declaration at various portions within ¶¶ 1, 3, 6-7, & 9 (objections ## 1-6), and Andrade's Declaration at ¶ 2 (objection # 7) on various legal grounds. The Court SUSTAINS objections #5 (Hurn's Decl. at ¶ 9, p. 3:2-4), but OVERRULES objections 1-4 and 6-7.

X. WHY SUMMARY ADJUDICATION SHOULD BE GRANTED

Under the FAC, Hurn's liability rests on two theories: alter ego of CFD or personally under mandates of Labor Code section 558.1.

A. Applicable Law

To establish an alter ego theory, the plaintiff must establish a unity of interest and resultant injustice. (*Leek v. Cooper* (2011) 194 Cal.App.4th 399, 415.) Before a corporate veil may be pierced (i) there must appear a unity of interest and ownership that the individuality of the corporation and owner(s) do not exist, and (ii) that allowing the corporate veil to stand would result in inequitable results. (*Sonora Diamond Corp. v. Superior Court (Sonora Union High School District)* (2000) 83 Cal.App.4th 523, 538.) Factors indicating a unity of interest include commingling funds, failing to issue stock or maintain corporate records, identical equitable ownership, inadequate capitalization, and disregarding corporate formalities. (*Zoran Corp. v. Chen* (2010) 185 Cal.App.4th 799, 811-12.)

⁵ The Court finds that the moving party has complied with its meet-and-confer obligation.

Labor Code section 558.1, subdivisions (a)-(b), provide that a natural person who is an owner, director, officer, or managing agent of the employer who violates, or causes to be violated, “Sections 203, 226, 226.7, 1193.6, 1194, or 2802, may be held liable as the employer for such violations.” Plaintiff’s 1st through 5th causes of action are brought under Labor Code sections 203 (3rd), 226 (5th), 226.7 (1st-2nd), and 2802 (4th).

One cannot be liable merely because of status as an owner, officer, director, or managing agent. (*Espinoza v. Hepta Run, Inc.* (2022) 74 Cal.App.5th 44, 59 [*Espinoza*].) “However, that does not necessarily mean the individual must have had involvement in the day-to-day operations of the company, nor is it required the individual authored the challenged employment policies or specifically approved their implementation. But to be held personally liable he or she must have had some oversight of the company’s operations or some influence on corporate policy that resulted in Labor Code violations.” (*Ibid.*) An owner, officer, director, or managing agent will be liable for wage-and-hour violations if either (i) he was personally involved in the violation or (ii) he sufficiently participated in the activities of the employer so that he may be deemed to have contributed to, and caused the violation. (*Usher v. White* (2021) 64 Cal.App.5th 883, 896-97 [*Usher*].)

In determining if an owner, officer, director, or managing agent violated or caused to be violated a specified Labor Code provision, the court will need to examine the particular facts in light of the conduct, or lack of conduct, attributed to the owner, director, officer, or managing agent, but if there is no dispute on the material facts, then the issue may be resolved as a matter of law. (*Usher, supra*, 64 Cal.App.5th at p. 897.)

B. Factual Background

The relevant facts are that Rodriguez was employed by CFD on approximately July 8, 2020. Defendant’s Separate Statement of Undisputed Facts (UF) #14 (undisputed). She stopped

working on March 23, 2021, when she unilaterally walked off the job and never returned. UF #15 (disputed) & 23 (undisputed). Plaintiff disputes the claim that she unilaterally left; her position is that she left due to a hostile confrontation and her departure constituted a constructive termination.

Hurn lives in Michigan. She is not involved in any of the daily operations of CFD, nor its policies, procedures, and/or hiring or termination decisions of its employees, including Rodriguez. Defendant's Separate Statement of Undisputed Facts (UF) #1. Plaintiff disputes this, noting that an October 2025 Secretary of State filing lists Hurn as a director and secretary of CFD [see AF #5]. Although Hurn is listed on paperwork going back to 2013 as CFD's director or officer, since 2019, she has not been involved in day-to-day issues for CFD. UF #13. Plaintiff does not dispute the fact, but disputes by making a legal argument. Plaintiff adds that after this litigation was filed, Hurn replaced Vandecar as Chief Financial Officer and agent for service of process for CFD. AF #6.

Hurn owned no shares in CFD between July 2020 and March 2021. UF #2 (undisputed). CFD is a corporation that runs a single dental office. Abaro is the sole shareholder. UF #3 (undisputed).

Hurn is employed by One Best Life, Inc. (OBL) or One Best Life Management LLC (OBLM). UF #5. Plaintiff disputes because Hurn attests that she is one of the founders of OBL, which was affiliated with CFD [see also AF #7]. Hurn is involved in business dealings for OBL. UF #12. Plaintiff disputes to point out that Hurn's declaration was signed in Tennessee, not her claimed home in Michigan. Hurn did not micro-manage the day-to-day operations of CFD. UF #21. Plaintiff disputes to assert a legal argument. OBL and/or OBLM provide management services for CFD. AF #8.

Between 2020 and 2026, CFD was in Chino. It is a separate corporation. It pays its own bills, does its own payroll, and pays its own taxes. UF #6-7 (undisputed). CFD employs an on-site office manager to administer the day-to-day operations. UF #8 (undisputed).

During Rodriguez's employment, Rodriguez had no material and direct interactions with Hurn. UF #4 & 17 (undisputed). Hurn was not consulted on any issue involving Rodriguez, including her hiring or termination, or any alleged Labor Code violations. UF #9-10 & 18. Plaintiff disputes to make a legal argument. Hurn has no personal knowledge about Rodriguez's employment with CFD, including on any wage-and-hour matter. UF #19. Plaintiff disputes to assert a legal argument.

C. Alter Ego Liability

No alter ego liability can exist against Hurn since she holds no ownership interest in CFD. It is undisputed that Defendant Abaro is the sole shareholder of CFD [UF #2-3]. Even if Hurn is an officer or director of CFD, it does not establish a unity of interest in and ownership of CFD to support alter ego.

D. Alleged Oversight & Management

In 2020 and 2021, Hurn admits that she would have been listed in some paperwork as an officer/director of CFD. (UF #13.) Thus, she would fit into the category of one who could be liable under Labor Code section 558.1.

However, Hurn indicates that since 2019, she has not been involved with CFD's daily operations. She played no role in its policies, procedures, or employment decisions, including the employment of and separation of Rodriguez. (UF #1, 4, 9-10, 17, 19, & 21.) Rather, the daily operations were a matter of CFD's on-site office manager. (UF #8.) OBL and/or OBLM provide management services for CFD [AF #8], which include marketing, outside services, and other processes [Hurn Decl. at ¶ 2]. Hurn is employed by OBL, which she founded, but has no direct

ownership as to OBL [Hurn's Decl. at ¶ 3]. Hurn engages in business dealings for OBL [UF #5 & 12; AF #7], *i.e.*, engages in long-range planning and high-level strategic development, including growth and expansion issues [Hurn Decl. at ¶ 5].

No evidence establishes a triable issue of fact as to whether Hurn managed operations or created the wage-and-hour policies that impacted Rodriguez.

In *Usher*, the Court of Appeal found no section 558.1 liability of the owner when she did not participate in the day-to-day operations, made no operational, managerial, or policy determinations, and was not involved in the contractor agreements, but she merely signed loan documents, provided funds, and electronically signed paychecks. (*Usher, supra*, 64 Cal.App.5th at pp. 897-98, 899.) In contrast, in *Espinoza*, the individual was the owner who approved the policy for paying the employee truck drivers that violated various Labor Code provisions. (*Espinoza, supra*, 74 Cal.App.5th at pp. 58, 60.)

The facts and evidence are akin to *Usher* as opposed to *Espinoza*. Hurn had no direct involvement with paying CFD employees, granting or denying meals and rest breaks, or granting or denying requests for reimbursement. There are no facts indicating that (i) she set policies for paying CFD employees, providing meals and rest breaks, or reimbursement, and (ii) she had any operational control or influence during Rodriguez's employment.

XI. CONCLUSION

Defendant Hurn's Motion for Summary Adjudication of the 1st-5th causes of action is GRANTED. [UF #1-10, 12-15, 17-19, 21, & 23, and responses thereto; AF #7-8; and cited evidence: Andrade & Hurn's Declarations; and Rodriguez & Andrade's Depositions].

IT IS SO ORDERED.

Dated: _____

[TENTATIVE – NOT FINAL]
Hon. Joseph B. Widman
Judge of the Superior Court